is no established rule for the determination of what belongs to the one or the other class. It originated with the courts. Generally it is applied to escape difficulties, in order that injustice may not result from the recognition of technical defenses based upon the governmental character of such corporations.[6] But such distinction furnishes no ground for the application of constitutional restraints here sought to be invoked by the City of Trenton against the State of New Jersey. They do not apply as against the State in favor of its own municipalities. We hold that the City cannot invoke these provisions of the Federal Constitution against the imposition of the license fee or charge for diversion of water specified in the state law here in question. In view of former opinions of this Court, no substantial federal question is presented. *Pawhuska* v. *Pawhuska Oil & Gas Co., supra,* and cases cited.[7]

The writ of error is dismissed.

CITY OF NEWARK *v.* STATE OF NEW JERSEY.

ERROR TO THE SUPREME COURT OF THE STATE OF NEW JERSEY.

No. 469. Argued March 2, 1923.—Decided May 7, 1923.

1. The Equal Protection Clause of the Fourteenth Amendment cannot be invoked by a city against its State. P. 196. *Trenton* v. *New Jersey, ante,* 182.
2. So *held,* where it was claimed that the method adopted in c. 252, Laws of New Jersey, 1907, for fixing maximum amounts of water divertible without payment of license fees to the State, worked

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[6] Cf. 1 Dillon Municipal Corporations, 5th ed., § 110, p. 183.

[7] See decisions per curiam: *Chicago* v. *Dempcy,* 250 U. S. 651; *Michigan ex rel. Groesbeck* v. *Detroit United Ry.,* 257 U. S. 609; *Chicago* v. *Chicago Railways Co., id.* 617; *Avon* v. *Detroit United Ry., id.* 618; *Edgewood* v. *Wilkinsburg & East Pittsburgh Street Ry. Co.,* 258 U. S. 604; *Sapulpa* v. *Oklahoma Natural Gas Co., id.* 608.